

ASCII MASTER FLOW – PANEL 1/12: Patentability decision tree

CLAIMED SUBJECT MATTER -> product or process?

NOVELTY -> absent from prior art

INVENTIVE STEP -> non-obvious technical advance / economic significance

INDUSTRIAL APPLICATION -> capable of being made or used in industry

SECTIONS 3 / 4 -> excluded subject matter still fails

ASCII MASTER FLOW – PANEL 2/12: Discovery invention product process matrix

DISCOVERY -> finding; not automatically an invention

INVENTION -> qualifying new product or process

PRODUCT PATENT -> claimed thing

PROCESS PATENT -> claimed method

INDIA PHARMA / FOOD / CHEMICALS -> process-only 1970-2004; product from 01 JAN 2005

ASCII MASTER FLOW – PANEL 3/12: Term and territoriality map

FILING DATE -> 20-YEAR TERM CLOCK

INDIAN GRANT -> enforceable territorial Indian right

DIRECT / PARIS ROUTE -> selected foreign filings

PCT ROUTE -> common international application procedure

NATIONAL / REGIONAL OFFICE -> final grant decision

ASCII MASTER FLOW – PANEL 4/12: Indian patent procedure rail

APPLICATION FILED

- > PUBLICATION
- > EXAMINATION ON REQUEST
- > OPPOSITION / COMPLIANCE TEST
- > GRANT OR REFUSAL; NEVER UPGRADE AN EARLIER RUNG

ASCII MASTER FLOW – PANEL 5/12: Institution and forum router

DPIIT / CIPAM -> policy and implementation support

CGPDTM -> administrative apex

INDIAN PATENT OFFICE -> patent administration

WIPO -> PCT and treaty cooperation; WTO -> TRIPS

IPAB -> existed at 2019 PYQ date; abolished in 2021

ASCII MASTER FLOW – PANEL 6/12: Public-interest safeguard ladder

SECTION 3(d) -> patentability quality filter

SECTION 25 -> pre-grant / post-grant opposition

SECTION 84 -> three-year timing plus three grounds

SECTION 92 -> notified emergency / urgency / public non-commercial use

SECTION 107A -> regulatory-information use; not unlimited research

ASCII MASTER FLOW – PANEL 7/12: Section 3(d) twin-limb gate

KNOWN SUBSTANCE

BRANCH A -> new property / new use -> not an invention

BRANCH B -> new form -> test significant efficacy difference

THERAPEUTIC CONTEXT -> owner records therapeutic-efficacy reading

TRAP -> never transfer the new-form exception to a new-use claim

ASCII MASTER FLOW – PANEL 8/12: PCT WIPO TRIPS WTO split

PCT -> international patent-application procedure

WIPO -> administers PCT and other IP treaties

TRIPS -> minimum standards plus flexibilities

WTO -> monitoring and member-to-member dispute settlement

NONE -> automatic universal patent grant

ASCII MASTER FLOW – PANEL 9/12: Traditional knowledge protection chain

CODIFIED MEDICINAL KNOWLEDGE

- > TKDL DOCUMENTATION
- > SEARCHABLE PRIOR ART FOR PATENT OFFICES
- > RESIST WRONGFUL NOVELTY CLAIMS / BIOPIRACY

LIMIT -> defensive disclosure is not a patent or automatic benefit sharing

ASCII MASTER FLOW – PANEL 10/12: IP boundary wheel

PATENT -> invention / technical function

COPYRIGHT -> original expression, not idea

TRADEMARK -> commercial-source identifier

GI -> collective place-linked goods

DESIGN -> visual appearance, not technical function

MUST REMEMBER: Patent analysis separates patentable subject matter, novelty, inventive...

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ASCII MASTER FLOW – PANEL 11/12: Life material and software filter

PLANTS / ANIMALS / SEEDS / VARIETIES -> Section 3(j) exclusion

PLANT VARIETY -> PPV&FR sui-generis route

MICRO-ORGANISM -> not inside the stated plant-animal exclusion

SOFTWARE-LABELLED CLAIM -> apply criteria and exclusions; no blanket rule here

RULE -> classify claimed subject matter before policy argument

CLOSE DISTINCTION: Discovery is not invention, filing is not grant, patent is not...

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ASCII MASTER FLOW – PANEL 12/12: Innovation access and status spine

INCENTIVE -> disclosure + investment + licensing

TRANSLATION -> validation + TTO + pilot + finance + regulation + market

ACCESS -> Section 3(d) + CL + opposition + Bolar + TRIPS flexibilities

STATUS -> filed != published != examined != granted != commercialised

VERDICT -> quality rights, credible safeguards and translation capacity

EVIDENCE LIMIT: MECHANISM / STATUS / CAUSATION: Cite the relevant Act/provision,...

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